

Message from President Mike Mahon to University community - Dr. Anthony Hall suspension

THURSDAY, OCTOBER 13, 2016

[HTTPS://WWW.ULETH.CA/NOTICE/NOTICES/MESSAGE-PRESIDENT-MIKE-MAHON-UNIVERSITY-COMMUNITY-DR-ANTHONY-HALL-SUSPENSION#.WAEVKVCRKUK](https://www.uleth.ca/notice/notices/message-president-mike-mahon-university-community-dr-anthony-hall-suspension#.WAEVKVCRKUK)

As many have heard through media reports, I recently took action to suspend a faculty member, Dr. Anthony Hall, from duties and privileges without pay. This action has not been taken lightly, or without serious consideration, debate and expert legal guidance on appropriate process and the implications for both the faculty member in question, and our university community.

As a University we have made every effort to respect the privacy of Dr. Hall and have told those writing to the University on this issue and to the media that we cannot comment on issues related to the employment of an individual with the University. However, Dr. Hall has chosen to make this issue very public and share through his social media and online channels, and with the media itself, partial details of conversations and actions the University has taken. The University of Lethbridge Faculty Association (ULFA) also has chosen to provide commentary direct to the media on this issue.

In order to ensure that there is accurate information available, I can share that the suspension of Dr. Hall was done in accordance with section 22(3) of the Post-secondary Learning Act (PSLA) of the Province of Alberta. Section 22(3) states that, "Subject to any existing agreement, a president may, in the president's discretion, suspend from duty and privileges any member of the academic staff at the university and shall forthwith report the president's action and the reasons for it (a) to the board, and (b) to the executive committee of the general faculties council."

Both the Board of Governors and the Executive Committee of the General Faculties Council were informed of the suspension on October 5, 2016. ULFA, in their recent media commentary, has stated that in their opinion the suspension violates provincial law. As ULFA has been informed, there is nothing in the existing agreement, the Faculty Handbook, that limits the ability of the President to act, or would subordinate the PSLA to the Faculty Handbook. It is therefore lawful and prudent for the University to have taken the actions that I have. While ULFA has a different interpretation of how to apply the PSLA in this instance, they do have the option of requesting a judicial review of the use of Section 22(3) to suspend Dr. Hall.

Again, the decision to suspend Dr. Hall was not made easily or quickly. This action is not focused on Dr. Hall's published scholarship, driven by complaints of students, or the demands of external advocacy groups. It is focused on his YouTube based videos and comments in social media that have been characterized as being anti-Semitic, supportive of holocaust denial and engagement in conspiracy theories. In sharing and communicating his views such as he has, we

have a concern that Dr. Hall has contravened section 3 of the Alberta Human Rights Act, and that he has created an environment that is discriminatory for students and his faculty colleagues whose personal backgrounds, research topics or beliefs are at odds with Dr. Hall's stated views. The University is reviewing Dr. Hall's online activities to determine if a complaint to the appropriate Human Rights tribunal is warranted and justifiable and to determine if a discriminatory atmosphere has been created by Dr. Hall.

I acknowledge that this issue is distracting for our community, can be divisive and is bringing uncomfortable attention to our University. It is for this reason that I have chosen to write to the community to provide as much information as I am able. As always, our goal is to work within the values of the University, as noted in our [Strategic Plan](#), to support the communities we serve and create an environment that enables the success of our students, faculty and staff.

Sincerely,

Mike Mahon, Ph.D.
President & Vice-Chancellor